

• 中国式现代化与中国知识体系 •

法治文明的中国表达

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编者按：习近平总书记在中国共产党第二十次全国代表大会上的报告中指出：“中国式现代化的本质要求是……创造人类文明新形态。”2022年4月25日，在中国人民大学考察时指出：“加快构建中国特色哲学社会科学，归根结底是建构中国自主的知识体系”。伟大实践孕育新的知识体系，新的知识体系推动伟大实践。构建中国自主知识体系必须扎根人类文明新形态的中国伟大实践和伟大创造。中国法治文明作为人类文明新形态的有机组成部分，在一定意义上表征着文明的高度和水准。在建构中国自主法学知识体系的历史转型期，必须以习近平法治思想为指导，不断总结和创新法治文明的中国表达。基于此，我们以“法治文明的中国表达”为主题组织了六篇文章，以期从不同视角、不同层面为构建中国自主法学知识体系贡献智慧。**西南政法大学教授付子堂**认为，中国式法治现代化道路深刻反映了中国共产党不断探索法治发展道路的光辉历程，彰显出鲜明的中国法治文明特色。中国共产党百年奋斗不仅深刻改变了中国，而且正在深刻影响世界历史进程。党通过领导中国人民百年法治奋斗进行的法治机制创新、法治文本创新、法治话语创新，呈现出人类法治文明的中国新形态。**中国社会科学院法学研究所研究员李林**认为，现代化中华法治文明，不仅是中华民族灿烂文明对人类文明发展的伟大创造，也是中国法治对世界法治文明进步的卓越贡献，是21世纪人类法治文明在东方大国产生的重大创新成果，实现了中华优秀传统文化从学科体系、学术体系、话语体系等方面的创造性转化、创新性发展，推进了中华法系从价值理念、文化底蕴、制度构建、治理经验等方面的时代性升华、现代性复兴，具有十分重要的理论价值、实践价值和世界意义。**华东政法大学教授何勤华、上海交通大学凯原法学院博士后周小凡**认为，中国特色社会主义法治理论，是习近平法治思想的重要组成部分，是新时代中华法治文明的最新成果。它萌芽于1954年前后以毛泽东为核心的党的第一代领导人对法的认识，成熟、定型于习近平法治思想之中。它以马克思主义法学观为思想渊源，以中华法系与中华

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法律文化以及其他人类法治文明之精华作为历史基础，以中国共产党人领导的 20 多年革命根据地的法制建设为社会实践，以新中国 70 余年社会主义法治建设为时代背景，具有内在的逻辑和规则。**中国政法大学教授黄进**认为，统筹推进国内法治和涉外法治是习近平法治思想的核心要义之一。该命题以中国特色社会主义法治理论、中国特色大国外交理论、现代先进国际法理论和中华优秀传统文化为思想渊源，与当前时代背景相呼应，与统筹国内国际两个大局相统一，具有重大的时代意义、全局意义、国际意义和战略意义。**中国人民大学法学院教授陈卫东**认为，在习近平法治思想指引下，我国的刑事程序法治建设通过理念革新、制度建设、实践创新，取得一系列重大成就。多重因素的合力助推刑事程序法治文明获得新发展，立足国情并遵循刑事司法规律是取得新成就的关键因素；我国传统刑事程序法治文明的创造性转化是推动新发展的内生动力；人类刑事程序法治文明成果的创新性发展是迈向新航程的外部支撑。**吉林大学教授蔡立东**认为，中国式物权制度对标以公有制为前提发展中国特色社会主义市场经济、平衡实现人民福祉与民事权利，以“三重所有权”结构安排捍卫中国特色社会主义公有制、以“多层次用益物权体系”制度创新满足人民对美好生活的向往、以“平等保护”法律原则维护市场机制的有效运作，创新性地回应了财产权文明的世界之问，提升了财产权文明的时代刻度。

scientific and people-centered. It fully embodies the truth and moral strength of Xi Jinping Thought on Socialism with Chinese Characteristics for a New Era. It is an optimal way to the development of human culture and is of great global significance.

The Chinese Expression of the Culture of Rule of Law

*Fu Zitang, Li Lin, He Qinhua, Zhou Xiaofan, Huang Jin,
Chen Weidong and Cai Lidong • 43 •*

Editor's Note: In the report to the 20th National Congress of the CPC, General Secretary Xi Jinping pointed out: "The essential requirements of Chinese modernization" include "to create a new form of human advancement." On April 25, 2022, during a visit to Renmin University of China, he pointed out that "to accelerate the construction of philosophy and social sciences with Chinese characteristics is, in the final analysis, to build China's own knowledge system." Great practice breeds new knowledge systems, and new knowledge systems promote great practice. To build China's independent knowledge system, we must take root in China's great practice and creation of the new form of human advancement. As an integral part of the new form of human advancement, China's culture of rule of law to some extent represents the height and level of the advancement. Keeping this in mind, we have invited six articles with the theme of "Chinese Expression of the Culture of Rule of Law," hoping to offer some contribution to the construction of China's independent legal knowledge system from different perspectives and different levels. Fu Zitang, professor at Southwest University of Political Science and Law, believes that the path to modernization of Chinese rule of law profoundly reflects the glorious course of the CPC's continuous exploration of the rule of law, highlighting the distinctive characteristics of the Chinese culture in this area. The centenary endeavor of the CPC not only has profoundly changed China, but also is profoundly influencing the course of world history. In the past century, by leading the Chinese people in innovating the legal mechanisms, legal texts, and legal discourse, the Party has created a new form of legal culture in China. Li Lin, research fellow at the Institute of Law of the Chinese Academy of Social Sciences, believes that the modern Chinese culture of rule of law is not only a great creation of the splendid culture of the Chinese nation for the development of human culture, but also a remarkable contribution of the Chinese rule of law to the progress of the world culture of rule of law, and a major innovation of the culture of rule of law in the 21st century in a major Eastern country. It has realized the creative transformation and innovative development of the excellent traditional Chinese legal culture in terms of discipline system, academic system and discourse system, and boosted the revitalization of the Chinese legal system in terms of value ideals, cultural heritage, system construction and governance experience, and thus has very important theoretical value, practical value and world significance. He Qinhua, professor at East China University of Political Science and Law, and

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Zhou Xiaofan, postdoctoral fellow at the Kaiyuan Law School of Shanghai Jiao Tong University, believe that the theory of socialist rule of law with Chinese characteristics is an important part of Xi Jinping Thought on the rule of law and the latest achievement of China's culture of rule of law in the new era. It originated around 1954 from the understanding of law of the first generation of Communist Party leaders with Mao Zedong at the core, and matured in Xi Jinping Thought on rule of law. It has Marxist legal concepts as its ideological source, the essence of Chinese legal system, and Chinese legal culture and other rule of law cultures as its historical basis; its social practice is the more than twenty years of legal system construction in the Party-led revolutionary base areas; and its historical background is the socialist rule of law construction in the PRC for more than 70 years. Therefore, the theory of the socialist rule of law with Chinese characteristics has the logic and rule of its own.

Huang Jin, professor at China University of Political Science and Law, believes that a integrated promotion of domestic rule of law and foreign-related rule of law is one of the core elements of Xi Jinping Thought on rule of law. Based on the theories of socialist rule of law with Chinese characteristics, the theory of major-country diplomacy with Chinese characteristics, and the theories of modern international law and excellent traditional Chinese culture, this promotion echoes the call of the times and offers a good response to the overall domestic and international situations. It is of great overall contemporary significance both internationally and strategically.

Chen Weidong, professor of the Law School of Renmin University of China, believes that under the guidance of Xi Jinping Thought on rule of law, the construction of rule of law in criminal procedure in China has made a series of significant achievements through intellectual innovation, system construction and innovative practice. The combined force of multiple factors has promoted the culture of the rule of law in criminal procedure to develop new achievements, and, taking the national conditions and following criminal justice law are the key factors in making such achievements; the creative transformation of Chinese traditional culture of rule of law in criminal procedure is its endogenous motive force; the innovative development of criminal procedure and the culture of rule of law around the world is and will continue to be its external support.

Cai Lidong, professor at Jilin University, believes that the Chinese property rights system aims to develop the socialist market economy with Chinese characteristics premised on public ownership and strike a balance between the realization of the people's welfare and civil rights. With the structure of "triple ownership" to safeguard socialist public ownership with Chinese characteristics, with the innovation of the system of "multi-level usufruct" to meet people's aspiration for a better life, and with the legal principle of "equal protection" to maintain the effective operation of the market mechanism, the Chinese property rights system has offered innovative answers to the world's queries about the culture of property rights and therefore has made contributions to its advancement.